



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 27, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16274
(SIXTH REVISION)

EXPIRATION DATE: 2028-02-29

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Matheson Tri-Gas, Inc.
Longmont, CO
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 4.2 and 4.3 materials in specially-designed packagings shipped in accordance with the exceptions in § 173.13. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as both an "approval" to authorize alternative packaging in accordance with Part 4, Chapter 2.8 of the ICAO TI; as an "exemption" as defined in 1;1.1.3 from labelling according to the ICAO TI; and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.

Tracking Number: 2023114606

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.13(c)(2)(i) in that any inner packaging may not exceed 2.85 kg; § 173.13(c)(2)(ii) in that the inner packaging is placed in a barrier bag that is not hermetically sealed; § 173.13(c)(2)(iii) in that the inner packaging is not placed in a secondary fiberboard box that is placed inside a hermetically sealed barrier bag; Packing Instruction 487 of the ICAO TI in that the inner packaging quantity may not exceed 1.0 kg and that the inner packagings must be hermetically sealed; and 53.1.1 of the ICAO TI in that packages must be labeled with hazard labels, except as specified herein.
5. BASIS: This special permit is based on the application of Matheson Tri-Gas, Inc. dated November 10, 2023, and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium hydride, mixture	4.3	UN1414	I
Self-heating solid, inorganic, n.o.s.	4.2	UN3190	II
Alkali metal amides	4.3	UN1390	II

7. SAFETY CONTROL MEASURES:
- a. PACKAGING: Packaging must be in accordance with the Matheson Tri-Gas, Inc. application dated September 29, 2014, and on file with the Office of Hazardous Materials Safety (OHMS) and with the following:
- (1) Inner packaging:
- (i) Inner packagings are non-specification cylinders (described as gas purifiers) constructed of 316L stainless steel.
- (ii) Each cylinder contains no more than 2.96 kg of hazardous material when transported by motor vehicle or 2.85 kg of hazardous material when transported by cargo aircraft.

(iii) The cylinders are packaged in a plastic bag sealed with a zip tie or by heat-sealing. Multiple cylinders may be packaged in a single plastic bag.

(iv) The bagged cylinders are then placed in a plastic-lined expanded foam pad completely surrounding the purifiers.

(2) Outer packaging:

(i) Prescribed outer packaging is a UN 4G fiberboard box or a UN 4D wooden box certified at the Packing Group I performance level and meeting the designs included in Matheson Tri-Gas, Inc.'s application dated September 29, 2014, and on file with the OHMS.

(ii) For transportation by cargo aircraft, the net quantity in one package may not exceed the quantity specified in Column (9B) of the § 172.101 Hazardous Materials Table and Column 13 of the ICAO TI Dangerous Goods List.

b. HAZARD COMMUNICATION:

(1) In lieu of the marking required by § 173.13(d), the outside of each package must be marked "DOT-SP 16274 – NO HAZARD LABELS REQUIRED" in letters at least 12.0 mm (one-half inch) high on a contrasting background in proximity to markings required by the HMR and the ICAO TI unless the packages are labelled in accordance with Part 5, Chapter 3 of the ICAO TI.

(2) The requirements in § 172.402(c) and 5;3.2.12 of the ICAO TI are not waived.

(3) The exception from placarding provided in § 173.13(a) applies.

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR and the ICAO TI.

- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. For purposes of transportation by cargo aircraft, this special permit constitutes an exemption to the ICAO TI in accordance with 1;1.1.3 when packages are not labelled in accordance with Part 5, Chapter 3 of the ICAO TI.
 - e. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of the States of origin, transit, over flight, and destination of the consignment, as well as the State of the air operator.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo-only aircraft with restrictions (see paragraph 7.a.(1)(ii)).
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti